

Girdhari Das Agarwal v. State of U.P. & 3 Others

Allahabad High Court · Division Bench · 6 July 2023 · 2023:AHC:132925-DB · Writ - C No. 15278 of 2023 · **Writ withdrawn with liberty to file afresh; the Clause 6.8(b)(i) hearing-date objection was not finally decided**

HEADNOTE

A writ against a Dakshinanchal Vidyut Vitran Nigam Limited provisional assessment for suspected unauthorised use, and the recovery on it, was withdrawn before any relief. On 18 May 2023 a Division Bench stated that Clause 6.8(b)(i) of the U.P. Electricity Supply Code, 2005 requires the assessing officer, where unauthorised use is suspected, to serve a provisional assessment bill with a show-cause notice, under proper receipt, giving fifteen working days for a reply and fixing a date and time of hearing. The notice here gave fifteen days for objections but fixed no date or time, and nothing showed that a hearing date had been fixed before recovery. Department counsel had said on 16 May 2023 that the recovery would be withdrawn, then maintained on 18 May that the notice conformed to law and had not been withdrawn. The Court did not quash the notice or the recovery. It required the Managing Director to examine the matter, file a personal affidavit on whether he concurred with the assessing officer, and take a remedial step if the notice was defective. On 6 July 2023, before that affidavit, the petitioner was permitted to withdraw with liberty to file afresh, counsel stating that settlement outside Court was being attempted. Whether unauthorised use was made out, and whether the notice and recovery could stand, was not decided.

FACTUAL SUMMARY

Girdhari Das Agarwal filed Writ-C No. 15278 of 2023 against the State of U.P. and three others, of whom respondent nos. 3 and 4 were the electricity department. The dispute was a provisional assessment notice for suspected unauthorised use of electricity and the recovery raised on it. The notice gave fifteen days for objections. The Court later recorded that nothing showed a date of hearing fixed before recovery began.

On 5 May 2023 the department was asked whether a final assessment had been passed and how the legal provisions had been complied with. On 16 May 2023 its counsel conceded that the notice fixed no hearing date and said the impugned recovery would be withdrawn. On 18 May 2023 he submitted instead that the notice conformed to law and had not been withdrawn. The Court required a personal affidavit from the Managing Director of Dakshinanchal Vidyut Vitran Nigam Limited. On 6 July 2023 the writ was withdrawn with liberty to file afresh, counsel stating that settlement outside Court was being attempted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)(i)

A provisional assessment notice for suspected unauthorised use must fix a date and time of hearing; the objection was stated but the writ was withdrawn before any quashing

QUESTION

Does Clause 6.8(b)(i) require a provisional assessment notice for suspected unauthorised use to fix a date and time of hearing, besides fifteen working days for a reply, and was the notice or the recovery quashed for omitting that date?

HOLDING

The 18 May 2023 Bench stated the requirement and did not quash. Where the assessing officer suspects unauthorised use, Clause 6.8(b)(i) requires service, under proper receipt, of a provisional assessment bill along with a show-cause notice, giving fifteen working days for a reply and fixing a date and time of hearing. The notice granted fifteen days for objections, but no date and time of hearing was fixed, and there was no material that any hearing date had been fixed before recovery. Counsel for the department had conceded on 16 May 2023 that the notice indicated no hearing date and that the impugned recovery would be withdrawn, then on 18 May submitted that the notice conformed to law and had not been withdrawn. The Court did not set aside the notice or the recovery. It required the Managing Director of Dakshinanchal Vidyut Vitran Nigam

Limited to examine the matter, file a personal affidavit stating whether he concurred with the assessing officer, and take a remedial step if the notice was found defective, and directed the Registrar (Compliance) to communicate that order. On 6 July 2023, before the affidavit, the writ was withdrawn with liberty to file a fresh petition because settlement outside Court was being attempted. The Clause 6.8(b)(i) objection did not mature into relief. ¶ [order of 18.5.2023, paras 1-5](#); [order of 6.7.2023, paras 2-3](#)

QUALIFIER

The statement of Clause 6.8(b)(i) is the interlocutory order of 18.5.2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.). The disposing order of 6.7.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.) is a withdrawal and does not repeat the clause.

FLAG Source PDF concatenates five orders: 5.5.2023 (Manoj Kumar Gupta and Rajendra Kumar-IV, JJ.: instructions on whether a final assessment was passed and how the provisions were complied with; list 9.5.2023); 9.5.2023 (Manoj Kumar Gupta and Prashant Kumar, JJ.: none for the petitioner; list 16.5.2023); 16.5.2023 (same: concession that the provisional assessment notice fixed no hearing date and that recovery would be withdrawn; list 18.5.2023); 18.5.2023 (same: numbered paras 1-5; Clause 6.8(b)(i); Managing Director's personal affidavit; list 6.7.2023); 6.7.2023 (Pritinker Diwaker, C.J. and Ashutosh Srivastava, J.; Neutral Citation No. 2023:AHC:132925-DB; withdrawn with liberty). Only Clause 6.8(b)(i) is cited. Catalog hits on Clauses 16.5, 5.5, 6.7, 6.8(a)(iv), 6.8(c), 6.8(d) and 6.8(v) are false positives. No precedent is cited. No Indian Kanoon doc-id is in the fingerprint. The amount, connection, premises and the date of the provisional assessment notice are not stated. The 16.5.2023 statement that recovery would be withdrawn was counsel's concession, not a direction, and was not acted on.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion On 18 May 2023 the Bench stated that, where unauthorised use is suspected, Clause 6.8(b)(i) requires a provisional assessment bill and show-cause notice, served under proper receipt, giving fifteen working days for a reply and fixing a date and time of hearing. It recorded that this notice fixed no such date or time before recovery. It did not quash the notice. The Managing Director was to examine it and take a remedial step if it was defective. The writ was withdrawn on 6 July 2023 before that step. ¶ [order of 18.5.2023, paras 3-5](#)

provisional-assessment-hearing-6.8b A fifteen-day window for objections, without a date and time of hearing fixed in the provisional assessment notice, was treated as short of Clause 6.8(b)(i). Department counsel's 16 May concession that recovery would be withdrawn was not carried out; on 18 May he said the notice conformed to law. No hearing was directed to be held, and withdrawal supervened. ¶ [order of 16.5.2023](#); [order of 18.5.2023, paras 1-4](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY FINAL ASSESSMENT ORDER HAD BEEN PASSED, AND HOW THE SUPPLY CODE HAD BEEN COMPLIED WITH IN MAKING IT

Instructions were called for on 5 May 2023. No later order records the instructions or answers the question.

¶ [order of 5.5.2023](#)

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE WAS DEFECTIVE, AND WHETHER THE MANAGING DIRECTOR CONCURRED WITH THE ASSESSING OFFICER

The 18 May 2023 order required a personal affidavit and a remedial step if the notice was found defective. The writ was withdrawn on 6 July 2023 before the affidavit. ¶ [order of 18.5.2023, para 5](#); [order of 6.7.2023, paras 2-3](#)

NOT DECIDED — WHETHER THE IMPUGNED RECOVERY WAS TO BE WITHDRAWN OR COULD CONTINUE

On 16 May 2023 counsel said the recovery would be withdrawn. On 18 May 2023 he said it had not been withdrawn because the notice conformed to law. The Court did not quash the recovery. ¶ [order of 16.5.2023](#); [order of 18.5.2023, para 1](#)

NOT DECIDED — WHETHER UNAUTHORISED USE OF ELECTRICITY WAS ESTABLISHED, AND THE QUANTUM OF ANY ASSESSMENT

The orders do not state the connection, the premises, the date of the notice, or any amount. The merits were not reached. ¶ [order of 18.5.2023, paras 2-4](#)

NOT DECIDED — THE TERMS OF THE PROPOSED SETTLEMENT OUTSIDE COURT

Withdrawal was allowed because efforts to settle were being made, with liberty to file a fresh petition if the occasion arose. No terms are recorded. ¶ [order of 6.7.2023, paras 2-3](#)

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.